

**DEPARTMENT SEVEN
JUDGE TIM P. KAM
707-207-7307
TENTATIVE RULINGS SCHEDULED FOR
FRIDAY, SEPTEMBER 4, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30 p.m.

**WHEELS FINANCIAL GROUP, LLC vs. ANTONIO CALLAHAN
Case No. CL25-07497**

Motion to Set Aside and Vacate Dismissal

TENTATIVE RULING

Plaintiff's motion to set aside dismissal pursuant to CCP Section 664.6 is denied without prejudice.

Reflecting due process concerns, service of a motion affecting the rights of a defendant who has not appeared in an action typically is required to be made in the same manner as required for service of summons and complaint. See, e.g., applications for writs of attachment [C.C.P. §482.070(d)], and applications for writs of possession [C.C.P. §512.030(b)]. (*Isbell v. County of Sonoma* (1978) 21 Cal.3d 61, 64-65).

In the present case, Defendant has not filed any responsive pleading in this action.

The only proof of service filed here for the motion papers shows service by mail on Defendant. No evidence was provided to explain how this could constitute proper service on a defendant who has never appeared in this action.

As to future motions, Plaintiff is directed to effect service of the motion papers in the manner required for service of summons and complaint, with such service completed at least 16 court days prior to the hearing date.
